

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:

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LESLIE MARTHONE,

Plaintiffs),

-against-

Plaintiff designates
New York County
the place of trial

The basis of venue is
plaintiff's residence

NEW YORK CITY POLICE OFFICER CARL ACHILLE
(Tax ID 945455),

Defendant(s).

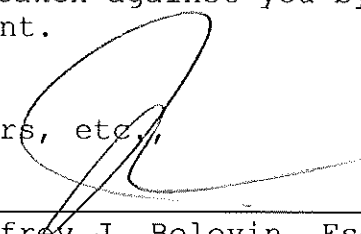
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To the above named Defendant(s)

Plaintiff resides at:
1738 Lexington Avenue
New York, NY 10029

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
June 20, 2013

Yours, etc.,



Jeffrey J. Belovin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendant(s) Address(es):

NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)
23rd Precinct
164 East 102nd Street
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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LESLIE MARTHONE,

VERIFIED COMPLAINT

Plaintiffs),

Index No:

-against-

**NEW YORK CITY POLICE OFFICER CARL ACHILLE
(Tax ID 945455),**

Defendants).

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Plaintiff, by and through her attorneys, **BELOVIN & FRANZBLAU, LLP**, as and for a verified complaint, respectfully alleges as follows:

1. That at all the times hereinafter mentioned, plaintiff was, and still is, a resident of the City and State of New York, County of New York.

2. That at all the times hereinafter mentioned, upon information and belief, the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, was, and still is, a resident of the City and State of New York, County of New York.

3. That at all times herein mentioned, upon information and belief, the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, was duly employed by the New York City Police Department and performed his duties from the New York City Police Department 23rd Precinct.

4. On May 15, 2012, the plaintiff was lawfully and properly inside of premises known as 1738 Lexington Avenue, Apartment 1B, in the City and State of New York, County of New York.

5. Upon information and belief, on or about May 15, 2012, the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)** was employed by the New York City Police Department.

6. On May 15, 2012, the defendant, without cause, justification or legal right, did enter the private dwelling of plaintiff. Defendant was not invited to so enter but did unlawfully trespass thereat.

7. On May 15, 2012, at approximately 5:40 p.m., the defendant, in the premises known as 1738 Lexington Avenue, Apartment 1B, City and State of New York, County of New York, did physically assault, batter, strike abuse and harass plaintiff without any justification.

8. On May 15, 2012, the defendant **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)** did engage in abusive conduct and exerted excessive force upon plaintiff without right, cause or justification.

9. On May 15, 2012, the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, did unlawfully detain plaintiff without right, cause or justification.

10. Upon information and belief, during all the times herein, the defendant acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of New York, City of New York.

11. Upon information and belief, the defendant engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendant, in unlawfully entering her private dwelling, in assaulting, battering, abusing, striking and harassing the plaintiff deprived the plaintiff of her constitutional rights and annuities secured by the United States Constitution and freedom from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, and illegal and unjustified excessive force, beating, abuse, assault, harassment protection against which are all secured by the Constitution of the United States and 42 United States Code Section 1983. The defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, acted knowingly and purposely with the specific intention to deprive the plaintiff of her aforementioned rights as described above.

12. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff, **LESLIE MARTHON**, suffered

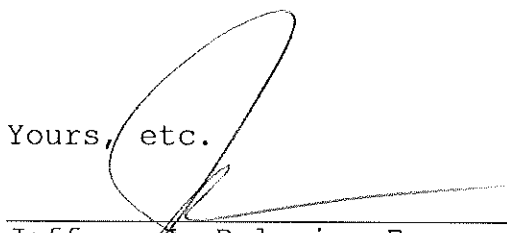
physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff claims compensation and punitive damages against defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, in an amount exceeding the jurisdictional limits of all lower Court based on the malicious conduct as described herein and her right under 42 USC 1983.

13. Plaintiff, **LESLIE MARTHONE**, hereby demands reasonable attorneys fees pursuant to 42 United State Codes Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgement against the defendant in an amount exceeding the jurisdictional limits of all lower Courts, plus punitive damages against defendants, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, in the amount exceeding the jurisdictional limits of all lower Courts together with attorneys fees, costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
June 20, 2013

Yours, etc.



Jeffrey U. Belovin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiffs)
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

State of New York)
 : ss.:
County of Bronx)

The undersigned, an attorney admitted to practice in the Courts of New York State, shows that the deponent is the attorney of record for the Plaintiff(s) in the within action; deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof; the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, deponent believes it to be true. This Verification is made by deponent and not by Plaintiff(s) because Plaintiff(s) are without the county wherein deponent maintains his offices. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows: independent investigation, records, papers and documents in the file, conversations, communications and correspondence with the Plaintiff(s).

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York
June 20, 2013



JEFFREY J. BELOVIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
=====

LESLIE MARTHONE,

Plaintiffs),

-against-

NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455),

Defendant(s).

NOTICE REGARDING AVAILABILITY OF ELECTRONIC
FILING SUPREME COURT CASES

Belovin & Franzblau, L.L.P.
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2311 White Plains Road
Bronx, NY 10467
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TO: